

Contentious Chamber

Decision to Withdraw Administrative Act of March 24, 2025

File Number: DOS-2023-03283

Subject: Withdrawal of Decision No. 131/2024

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, President, and Messrs. Christophe Boeraeve and Jelle Stassijns, Members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Considering the substantive decision No. 131/2024 of October 11, 2024;

Considering the appeal request of November 8, 2024;

Considering the ruling of the Market Court of March 19, 2025 (2024/AR/1690);

Has made the following decision regarding:

The complainant:

X, represented by noyb – European Center for Digital Rights, located at Goldschlagstraße 172/4/3/2, 1140 – Vienna (AT), registered in Austria under company number ZVR 1354838270, hereinafter referred to as "the complainant";

1 The new internal regulations of the DPA, resulting from the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

Decision to Withdraw Administrative Act — 2/5

The defendant: RTL Belgium, whose registered office is located at Avenue Jacques Georgin, 2 – 1030 Schaerbeek, registered under company number 0428.201.847, represented by Laurence Vandenbrouck, hereinafter referred to as "the defendant";

I. Rationale for the Decision to Withdraw Administrative Act

1.

In a ruling dated June 30, 2021, the Market Court held that: "An administrative authority may 'withdraw' its decisions. The withdrawal has the effect that the decision disappears from the legal order, and this with retroactive effect."

2.

By its decision No. 131/2024 of October 11, 2024, the Contentious Chamber decided as follows:

2 Brussels Court of Appeal (Market Court Section, 19th Ch. A.), June 30, 2021, 2021/AR/282, point 7.1: "Een administratieve overheid mag zijn beslissingen 'intrekken'. De intrekking heeft tot gevolg dat de beslissing retroactief (ex tunc) uit de rechtsorde verdwijnt."

3 See <https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n0-131-2024.pdf>.

Decision to Withdraw Administrative Act — 5/5

filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial

Code).

(Signed) Hielke HIJMANS

President of the Contentious Chamber

6° the signature of the applicant or their lawyer.

7 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.